

1
2
3
4
5
6
7
8
9
0
1
2
3
4
5
6
7
8
9
0
1
2
3
4

February 12, 2026

AS AMENDED

SENATE BILL NO. 1946

By: Murdock of the Senate

and

Moore of the House

```
[ sale of alcoholic beverages - license fee - spirits
- distillery premises - production limits -
nonalcoholic substances - markup - permission -
labels - effective date ]
```

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 37A O.S. 2021, Section 2-101, as last amended by Section 3, Chapter 190, O.S.L. 2025 (37A O.S. Supp. 2025, Section 2-101), is amended to read as follows:

Section 2-101. A. Except as otherwise provided in this section, the licenses issued by the ABLE Commission, and the annual fees therefor, shall be as follows:

1. Brewer License.....	\$1,250.00
------------------------	------------

2. Small Brewer License.....	\$125.00
------------------------------	----------

3.	Distiller License.....	\$3,125.00	\$1,250.00
----	------------------------	-----------------------	------------

4. Winemaker License.....	\$625.00
---------------------------	----------

5. Small Farm Winery License.....	\$75.00
-----------------------------------	---------

6. Rectifier License.....	\$3,125.00
---------------------------	------------

- 1 7. Wine and Spirits Wholesaler License..... \$3,000.00
- 2 8. Beer Distributor License..... \$750.00
- 3 9. The following retail spirits license fees
- 4 shall be determined by the latest Federal
- 5 Decennial Census:
- 6 a. Retail Spirits License for cities and
- 7 towns from 200 to 2,500 population..... \$305.00
- 8 b. Retail Spirits License for cities and
- 9 towns from 2,501 to 5,000 population..... \$605.00
- 10 c. Retail Spirits License for cities and
- 11 towns over 5,000 population..... \$905.00
- 12 10. Retail Wine License..... \$1,000.00
- 13 11. Retail Beer License..... \$500.00
- 14 12. Mixed Beverage License..... \$1,005.00
- 15 (initial license)
- 16 \$905.00
- 17 (renewal)
- 18 13. Mixed Beverage/Caterer Combination License..... \$1,250.00
- 19 14. On-Premises Beer and Wine License..... \$500.00
- 20 (initial license)
- 21 \$450.00
- 22 (renewal)
- 23 15. Bottle Club License..... \$1,000.00
- 24 (initial license)

1		\$900.00
2		(renewal)
3	16. Caterer License.....	\$1,005.00
4		(initial license)
5		\$905.00
6		(renewal)
7	17. Annual Special Event License.....	\$55.00
8	18. Quarterly Special Event License.....	\$55.00
9	19. Hotel Beverage License.....	\$1,005.00
10		(initial license)
11		\$905.00
12		(renewal)
13	20. Airline/Railroad/Commercial Passenger Vessel Beverage	
14	License.....	\$1,005.00
15		(initial license)
16		\$905.00
17		(renewal)
18	21. Agent License.....	\$55.00
19	22. Employee License.....	\$30.00
20	23. Industrial License.....	\$23.00
21	24. Carrier License.....	\$23.00
22	25. Private Carrier License.....	\$23.00
23	26. Bonded Warehouse License.....	\$190.00
24	27. Storage License.....	\$23.00

1	28.	Nonresident Seller License	\$750.00
2	29.	Manufacturer License:	
3	a.	50 cases or less sold in Oklahoma in	
4		last calendar year.....	\$50.00
5	b.	51 to 500 cases sold in Oklahoma in	
6		last calendar year.....	\$75.00
7	c.	501 cases or more sold in Oklahoma in	
8		last calendar year.....	\$150.00
9	30.	Manufacturer's Agent License.....	\$55.00
10	31.	Sacramental Wine Supplier License.....	\$100.00
11	32.	Charitable Auction License.....	\$1.00
12	33.	Charitable Alcoholic Beverage License.....	\$55.00
13	34.	Winemaker Self-Distribution License:	
14	a.	produced ten thousand (10,000) gallons	
15		or less in last calendar year.....	\$350.00
16	b.	produced more than ten thousand	
17		(10,000) gallons but no more than	
18		fifteen thousand (15,000) gallons in	
19		last calendar year.....	\$750.00
20	35.	Annual Public Event License.....	\$1,005.00
21	36.	One-Time Public Event License.....	\$255.00
22	37.	Small Brewer Self-Distribution License:	
23	a.	produced fifteen thousand (15,000)	
24		barrels or less in last calendar year.....	\$350.00

b. produced more than fifteen thousand

(15,000) barrels in last calendar year..... \$750.00

38. Brewpub License..... \$1,005.00

39. Brewpub Self-Distribution License..... \$750.00

40. Complimentary Beverage License..... \$75.00

41. Satellite Tasting Room License..... \$100.00

42. Event Bartender License..... \$50.00

B. 1. There shall be added to the initial or renewal fees for a mixed beverage license an administrative fee, which shall not be deemed to be a license fee, in the amount of Five Hundred Dollars (\$500.00), which shall be paid at the same time and in the same manner as the license fees prescribed by paragraph 12 of subsection A of this section; provided, this fee shall not be assessed against service organizations or fraternal beneficiary societies which are exempt under Section 501(c)(19), (8) or (10) of the Internal Revenue Code.

2. There shall be added to the fee for a mixed beverage/caterer combination license an administrative fee, which shall not be deemed to be a license fee, in the amount of Two Hundred Fifty Dollars (\$250.00), which shall be paid at the same time and in the same manner as the license fee prescribed by paragraph 13 of subsection A of this section.

C. Notwithstanding the provisions of subsection A of this section:

1 1. The license fee for a mixed beverage or bottle club license
2 for those service organizations or fraternal beneficiary societies
3 which are exempt under Section 501(c)(19), (8) or (10) of the
4 Internal Revenue Code shall be Five Hundred Dollars (\$500.00) per
5 year; and

6 2. The renewal fee for an airline/railroad/commercial passenger
7 vessel beverage license held by a railroad described in 49 U.S.C.,
8 Section 24301, shall be One Hundred Dollars (\$100.00).

9 D. An applicant may apply for and receive both an on-premises
10 beer and wine license and a caterer license.

11 E. All licenses, except as otherwise provided, shall be valid
12 for one (1) year from date of issuance unless revoked or
13 surrendered. Provided, all employee licenses shall be valid for two
14 (2) years.

15 F. The holder of a license, issued by the ABLE Commission, for
16 a bottle club located in a county of this state where the sale of
17 alcoholic beverages by the individual drink for on-premises
18 consumption has been authorized, may exchange the bottle club
19 license for a mixed beverage license or an on-premises beer and wine
20 license and operate the licensed premises as a mixed beverage
21 establishment or an on-premises beer and wine establishment subject
22 to the provisions of the Oklahoma Alcoholic Beverage Control Act.
23 There shall be no additional fee for such exchange and the mixed
24 beverage license or on-premises beer and wine license issued shall

1 expire one (1) year from the date of issuance of the original bottle
2 club license.

3 G. In addition to the applicable licensing fee, the following
4 surcharge shall be assessed annually on the following licenses:

5 1. Nonresident Seller License..... \$2,500.00

6 2. Manufacturer License:

7 a. 50 cases or less sold in Oklahoma in
8 last calendar year..... \$100.00

9 b. 51 to 500 cases sold in Oklahoma in
10 last calendar year..... \$225.00

11 c. 501 cases or more sold in Oklahoma in
12 last calendar year..... \$450.00

13 3. Wine and Spirits Wholesaler License..... \$2,500.00

14 4. Beer Distributor..... \$1,000.00

15 5. Retail Spirits License for cities and towns
16 over 5,000 population..... \$250.00

17 6. Retail Spirits License for cities and towns
18 from 2,501 to 5,000 population..... \$200.00

19 7. Retail Spirits License for cities and towns
20 from 200 to 2,500 population..... \$150.00

21 8. Retail Wine License..... \$250.00

22 9. Retail Beer License..... \$250.00

23 10. Mixed Beverage License..... \$25.00

24 11. Mixed Beverage/Caterer Combination License..... \$25.00

- 1 12. Caterer License..... \$25.00
2 13. On-Premises Beer and Wine License..... \$25.00
3 14. Annual Public Event License..... \$25.00
4 15. Small Farm Winery License..... \$25.00
5 16. Small Brewer License..... \$35.00
6 17. Complimentary Beverage License..... \$25.00

7 The surcharge shall be paid concurrent with the licensee's
8 annual licensing fee and, in addition to Five Dollars (\$5.00) of the
9 employee license fee, shall be deposited in the Alcoholic Beverage
10 Governance Revolving Fund established pursuant to Section 5-128 of
11 this title.

12 H. Any license issued by the ABLE Commission under this title
13 may be relied upon by other licensees as a valid license, and no
14 other licensee shall have any obligation to independently determine
15 the validity of such license or be held liable solely as a
16 consequence of another licensee's failure to maintain a valid
17 license.

18 SECTION 2. AMENDATORY 37A O.S. 2021, Section 2-103, as
19 amended by Section 5, Chapter 338, O.S.L. 2023 (37A O.S. Supp. 2025,
20 Section 2-103), is amended to read as follows:

21 Section 2-103. A. A distiller license shall authorize the
22 holder thereof:

23 1. To manufacture, bottle, package and store spirits on
24 licensed premises;

1 2. To sell spirits in this state to licensed wholesalers and
2 manufacturers only;

3 3. To sell spirits out of this state to qualified persons; to
4 purchase from licensed distillers and rectifiers in this state, and
5 import spirits from without this state for manufacturing purposes in
6 accordance with federal laws and regulations;

7 4. To serve free samples of spirits produced only by the
8 licensee to visitors twenty-one (21) years of age and older. For
9 purposes of this section, no visitor may sample more than a total of
10 three (3) fluid ounces of spirits per day. The distiller shall
11 restrict the distribution and consumption of spirits samples to an
12 area within the licensed premises designated by the distiller. A
13 current floor plan that includes the designated sampling area shall
14 be on file with the ABLE Commission. No visitor under twenty-one
15 (21) years of age shall be permitted to enter the designated
16 sampling area when samples are being distributed and consumed.
17 Samples of spirits served by a distiller under this section shall
18 not be considered a sale of spirits within the meaning of Article
19 XXVIII-A of the Oklahoma Constitution or Section 1-103 of this
20 title; provided, such samples of spirits shall be considered removed
21 or withdrawn from the distillery for use or consumption within the
22 meaning of Section 5-110 of this title for excise tax determination
23 and reporting requirements;

1 5. To sell spirits produced by the licensee for either on-
2 premises or off-premises consumption to consumers on the licensed
3 distillery premises or in an area controlled by the licensee located
4 contiguous to the licensed distillery premises and at ~~one (1)~~
5 ~~location~~ locations controlled by the licensee located in the same
6 ~~county~~ state as the licensed distillery premises but not contiguous
7 to the licensed distillery premises. Spirits offered for sale by
8 the Oklahoma licensed distiller will have been sold ~~to and shipped~~
9 to an Oklahoma licensed wine and spirits wholesaler and then made
10 available for purchase by the Oklahoma licensed distiller for sale;
11 and

12 6. To sell spirits and sample spirits at public events such as
13 trade shows or festivals. Products offered for sale by the Oklahoma
14 licensed distiller will have been sold ~~to and shipped~~ to an Oklahoma
15 licensed wine and spirits wholesaler and then made available for
16 purchase by the Oklahoma licensed distiller. Spirits offered for
17 on-premises consumption shall be in an area controlled by the
18 distillery and shall be considered the distillery premises.

19 B. ~~Spirits sold pursuant to paragraphs 5 and 6 of subsection A~~
20 ~~of this section shall not exceed fifteen thousand (15,000) gallons~~
21 ~~per calendar year in combination.~~

22 C. Spirits sold pursuant to paragraphs 5 and 6 of subsection A
23 of this section shall be a final sale. Licensed distillers may
24 offer for sale ~~non-alcoholic~~ nonalcoholic substances which may be

1 added to spirits ~~by the consumer after final sale~~. Substances used
2 for on-premises consumption shall be ~~non-alcoholic~~ nonalcoholic in
3 nature and shall not be considered part of the manufacturing
4 process. Spirits mixed with nonalcoholic substances or spirits
5 produced by the distiller and sold through a distributor in this
6 state shall not be considered a cocktail as defined by Section 1-103
7 of this title.

8 SECTION 3. AMENDATORY 37A O.S. 2021, Section 2-107, is
9 amended to read as follows:

10 Section 2-107. A. A wine and spirits wholesaler license shall
11 authorize the holder thereof:

12 1. To purchase and import into this state spirits and wines
13 from persons authorized to sell same who are the holders of a
14 manufacturer or nonresident seller license, and their agents who are
15 the holders of manufacturer's agent licenses;

16 2. To purchase spirits and wines from licensed distillers,
17 rectifiers and winemakers in this state;

18 3. To purchase spirits and wines from licensed wholesalers, to
19 the extent set forth in subsections B and C of this section;

20 4. To sell in retail containers in this state to retailers,
21 mixed beverage, caterer, special event, public event, hotel beverage
22 or airline/railroad beverage licensees, spirits and wines which have
23 been received and unloaded at the bonded warehouse facilities of the
24 wholesaler before such sale;

1 5. To sell to licensed wholesalers, to the extent set forth in
2 subsections B and C of this section, spirits and wines which have
3 been received and unloaded at the bonded warehouse facilities of the
4 wholesaler before such sale;

5 6. To sell spirits and wines out of this state to qualified
6 persons; ~~and~~

7 7. To sell to licensed distillers spirits that were
8 manufactured by that distiller ~~and which have been received and~~
9 ~~unloaded at a bonded warehouse facility of a wholesaler before such~~
10 ~~sale; and~~

11 8. To sell to a licensed distiller spirits that were
12 manufactured by such distiller on a price not to exceed a twelve-
13 percent markup above the free-on-board price and state excise taxes.

14 Provided, however, sales of spirits and wine in containers with
15 a capacity of less than one-twentieth (1/20) gallon by a holder of a
16 wholesaler license shall be in full case lots and in the original
17 unbroken case. Wholesalers shall be authorized to place such signs
18 outside their place of business as are required by Acts of Congress
19 and by such laws and regulations promulgated under such Acts.

20 B. A wholesaler may sell spirits and wine to other wholesalers
21 or purchase spirits and wines from other wholesalers without
22 complying with subsection A of this section in the case of the sale,
23 purchase or other transfer or acquisition of the entire business of
24 a wholesaler including the inventory of spirits and wine.

1 C. A wholesaler license shall authorize the holder thereof to:

2 1. Maintain not more than three (3) self-owned or leased and
3 self-operated bonded warehouses within this state. All invoices
4 shall be stored at the principal place of business for which the
5 wholesaler license was granted; and

6 2. Accept as payment cash, personal check, cashier's check,
7 money order or electronic fund transfer from persons licensed to
8 purchase alcoholic beverages; provided, a wholesaler shall not be
9 permitted to accept payment by credit card.

10 SECTION 4. AMENDATORY 37A O.S. 2021, Section 3-123, as
11 amended by Section 3, Chapter 94, O.S.L. 2023 (37A O.S. Supp. 2025,
12 Section 3-123), is amended to read as follows:

13 Section 3-123. A. It shall be unlawful for any person
14 privileged to sell alcoholic beverages to wholesalers, beer
15 distributors or retailers:

16 1. To discriminate, directly or indirectly, in price between
17 one wine and spirits wholesaler and another wine and spirits
18 wholesaler, when that manufacturer has not designated a single wine
19 and spirits wholesaler, or between one retailer and another retailer
20 purchasing alcoholic beverages bearing the same brand or trade name
21 and of like age and quality, unless otherwise provided by law; or

22 2. To grant, directly or indirectly, any discount, rebate, free
23 goods, allowance or other inducement.

1 B. The ABLE Commission is hereby authorized to promulgate rules
2 which are necessary to carry out the purpose of this section and to
3 prevent its circumvention by offering or giving of any rebate,
4 allowance, free goods, discount or any other thing or service of
5 value; provided, the posting or invoicing of charges per order for
6 processing minimum orders or per case for the handling or repacking
7 of goods by wine and spirits wholesalers and beer distributors for
8 sales in less than full case lots shall not constitute a violation
9 of this section.

10 C. For the violation of any provision of this section or of any
11 rule duly promulgated under this section, the ABLE Commission may
12 issue a written warning, fine, suspend or revoke a license as
13 follows:

14 1. For a first offense, a written warning which may be
15 accompanied by a fine not to exceed Five Thousand Dollars
16 (\$5,000.00);

17 2. For a second offense, not exceeding ten (10) days'
18 suspension of license; and

19 3. For a third offense, the ABLE Commission shall revoke the
20 license.

21 Provided, however, prior to suspending or revoking a license,
22 the ABLE Commission shall first provide written notice to a licensee
23 of the violation and a period of ninety (90) days following such
24 notice to cure or remedy such violation. For purposes of this

1 section, a "second offense" and "third offense" shall mean
2 violations that are related to or arising out of and occurring
3 within twelve (12) months of the "first offense".

4 D. For purposes of this section, and except as otherwise
5 provided in subsection E of this section, "inducement" means
6 directly or indirectly offering, selling, trading, giving or
7 furnishing any discount, free goods, electronic or nonelectronic
8 refrigerated equipment, barrels, tubs, fixtures, dispensing
9 equipment, outdoor electric or nonelectric advertising structure
10 displaying the retailer's name, permanent shelving, supplies, gifts,
11 prizes, instantly redeemable coupons, premiums, retailer rebates,
12 services of any employee including but not limited to affixing price
13 labels or tags, routinely stocking product on shelves other than the
14 stocking of cold boxes, paying a third party for entering product
15 and price information into a retailer's computer system, portal,
16 website, spreadsheet or third-party system, handling product that
17 was not sold to the retailer by the licensee, paying a slotting fee,
18 selling on consignment, operating a retailer's cash register,
19 conducting janitorial services, providing decorations, samples of
20 alcoholic beverages, personal property or other inducement or thing
21 of value to any retail spirit, retail beer, retail wine, beer and
22 wine, mixed beverage, caterer, bottle club or special event
23 licensee, wine and spirits wholesaler or beer distributor, their
24 agents or employees.

1 E. It shall not be deemed an inducement for a brewer, licensed
2 distiller, beer distributor, small brewer self-distributor or
3 brewpub self-distributor to voluntarily take the following
4 merchandising actions with the permission of the retail licensee:

5 1. Furnish point-of-sale advertising materials and consumer
6 advertising specialties, as those terms are defined in 27 C.F.R.,
7 Section 6.84 and in compliance with the other limits and
8 restrictions provided in 27 C.F.R., Section 6.84;

9 2. Give or sell product displays, including but not limited to
10 barrels and tubs, provided that the value of such displays does not
11 exceed the limits and restrictions provided in 27 C.F.R., Section
12 6.83;

13 3. Build product displays, accessible to the customer for the
14 product being delivered by the beer distributor;

15 4. Affix pricing to the shelf strip or product display for the
16 product being delivered by the beer distributor, small brewer self-
17 distributor or brewpub self-distributor, or brewed by the brewer;

18 5. Routinely stock and restock shelves and cold boxes and
19 rotate product that has been sold to the retail licensee by the beer
20 distributor, small brewer self-distributor or brewpub self-
21 distributor, or brewed by the brewer;

22 6. Periodically perform product resets, with permission of the
23 retail licensee, pursuant to a provided shelf plan or shelf
24 schematic;

1 7. Furnish things of value to a temporary retailer, as defined
2 in 27 C.F.R., Section 6.85;

3 8. Sell equipment or supplies to a retail licensee, provided
4 the equipment or supplies are sold at a price not less than the cost
5 to the industry member and payment is collected within thirty (30)
6 days of the sale;

7 9. Install dispensing accessories at the retail location, as
8 long as the retailer bears the cost of installation including
9 equipment; or furnish, give or sell coil cleaning services to a
10 retailer;

11 10. Withdraw quantities of beer or cider in undamaged, original
12 packaging from the retail licensee's stock, provided the beer
13 distributor, small brewer self-distributor, brewpub self-distributor
14 or brewer sold such beer, directly or indirectly, to the retail
15 licensee and such removal is otherwise permitted under Section 3-115
16 of this title; provided, however, replacing with beer or cider of
17 equivalent value shall not be considered a consignment sale;

18 11. Provide mail-in rebates for beer, cider and nonalcoholic
19 beverage merchandise items, funded by the brewer and redeemed by the
20 brewer, either by itself or through a third-party fulfillment
21 company, for a discount or rebate on the beer, cider or nonalcoholic
22 item;

1 12. Provide a recommended shelf plan or shelf schematic to a
2 retail licensee for all or any portion of the inventory sold by the
3 retail licensee;

4 13. Furnish or give a sample of beer or cider to a retailer who
5 has not purchased the brand from that brewer, beer distributor,
6 small brewer self-distributor or brewpub self-distributor within the
7 last twelve (12) months, provided that the brewer, beer distributor,
8 small brewer self-distributor or brewpub self-distributor may not
9 give more than thirty-six (36) ounces of any brand of beer or cider
10 to a specific retailer;

11 14. Furnish or give newspaper cuts, mats or engraved blocks for
12 use in retailers' advertisements;

13 15. Package and distribute beer or cider in combination with
14 other nonalcoholic items for sale to consumers;

15 16. Give or sponsor educational seminars for employees of
16 retailers either at the brewer, beer distributor, small brewer self-
17 distributor or brewpub self-distributor's premises or at the
18 retailer's establishment, including seminars dealing with use of a
19 retailer's equipment, training seminars for employees of retailers
20 or tours of the brewer, beer distributor, small brewer self-
21 distributor, or brewpub self-distributor's plant premises, provided
22 that the brewer, beer distributor, small brewer self-distributor or
23 brewpub self-distributor shall not pay the retailer for the
24 employees' travel, lodging or other expenses in conjunction with an

1 educational seminar but may provide nominal hospitality during the
2 event;

3 17. Conduct tasting or sampling activities at a retail
4 establishment and purchase the products to be used from the retailer
5 so long as the purchase price paid does not exceed the ordinary
6 retail price; provided, a beer distributor shall not be required to
7 provide labor for such sampling activities;

8 18. Offer contest prizes, premium offers, refunds and like
9 items directly to consumers so long as officers, employees and
10 representatives of brewers, beer distributors, small brewer self-
11 distributors, brewpub self-distributors and licensed retailers are
12 excluded from participation;

13 19. List the names and addresses of two or more unaffiliated
14 retailers selling the products of a brewer, beer distributor, small
15 brewer, small brewer self-distributor or brewpub self-distributor in
16 an advertisement of such brewer, beer distributor, small brewer,
17 small brewer self-distributor or brewpub self-distributor so long as
18 the requirements of 27 C.F.R., Section 6.98 are satisfied,
19 considering applicable guidance issued by the United States
20 Department of the Treasury Alcohol and Tobacco Tax and Trade Bureau;
21 provided, nothing in the Oklahoma Alcoholic Beverage Control Act
22 shall prohibit a retail, mixed beverage, on-premises beer and wine,
23 public event, special event, charitable auction, charitable
24 alcoholic beverage event, or complimentary beverage licensee from

1 communicating with a brewer, beer distributor, small brewer, small
2 brewer self-distributor or brewpub self-distributor on social media
3 or sharing media on the social media page or site of a brewer, beer
4 distributor, small brewer, small brewer self-distributor or brewpub
5 self-distributor. A retail, mixed beverage, on-premises beer and
6 wine, public event, special event, charitable auction, charitable
7 alcoholic beverage event, or complimentary beverage licensee may
8 request free social media advertising from a brewer, beer
9 distributor, small brewer, small brewer self-distributor or brewpub
10 self-distributor; provided, nothing in this section shall prohibit a
11 brewer, beer distributor, small brewer, small brewer self-
12 distributor or brewpub self-distributor from sharing, reposting or
13 forwarding a social media post by a retail, mixed beverage, on-
14 premises beer and wine, public event, special event, charitable
15 auction, charitable alcoholic beverage event, or complimentary
16 beverage licensee, as long as the sharing, reposting or forwarding
17 of the social media post does not contain the retail price of any
18 alcoholic beverage. No brewer, beer distributor, small brewer,
19 small brewer self-distributor or brewpub self-distributor shall pay
20 or reimburse a retail, mixed beverage, on-premises beer and wine,
21 public event, special event, charitable auction, charitable
22 alcoholic beverage event, or complimentary beverage licensee,
23 directly or indirectly, for any social media advertising services.
24 No retail, mixed beverage, on-premises beer and wine, public event,

1 special event, charitable auction, charitable alcoholic beverage
2 event, or complimentary beverage licensee shall accept any payment
3 or reimbursement, directly or indirectly, for any social media
4 advertising service offered by a brewer, beer distributor, small
5 brewer, small brewer self-distributor or brewpub self-distributor.
6 For purposes of this paragraph, "social media" means a service,
7 platform or site where users communicate with one another and share
8 media, such as pictures, videos, music and blogs, with other users
9 free of charge; or

10 20. Entering product and price information into a retailer's
11 portal, website, spreadsheet or third-party system. A brewer may
12 pay for a third-party system that provides data and pricing services
13 to the brewer or a beer distributor.

14 F. It shall not be deemed an inducement for a brewer, licensed
15 distiller, beer distributor, small brewer self-distributor or
16 brewpub self-distributor to engage in the following marketing
17 activities, provided that the brewer, beer distributor, small brewer
18 self-distributor or brewpub self-distributor shall not pay the
19 retailer's travel costs other than those for local transportation or
20 lodging:

21 1. Provide tickets to a retailer for a sporting or
22 entertainment event so long as a representative of the brewer, beer
23 distributor, small brewer self-distributor or brewpub self-
24 distributor attends the event with the retailer;

1 2. Provide food and beverage to a retailer for immediate
2 consumption:

- 3 a. at a meeting at which the primary purpose is the
4 discussion of business,
- 5 b. at a convention when the food and beverages are
6 offered to all participants, or
- 7 c. at a sports or entertainment event that the
8 representatives of a brewer, beer distributor, small
9 brewer self-distributor or brewpub self-distributor
10 attend with the retailer;

11 3. Participate in retailer association activities by engaging
12 in the following actions:

- 13 a. displaying products at a convention or trade show,
- 14 b. renting display booth space if the rental fee is the
15 same as paid by all exhibitors at the event,
- 16 c. providing its own hospitality which is independent
17 from association-sponsored activities,
- 18 d. purchasing tickets to functions and paying
19 registration fees if the payments or fees are the same
20 as paid by all attendees, participants or exhibitors
21 at the event, or
- 22 e. making payments for advertisements in programs or
23 brochures issued by retailer associations at a
24 convention or trade show; or

1 4. Giving or selling outdoor signs to a retailer so long as the
2 following requirements of 27 C.F.R., Section 6.102 are satisfied:

- 3 a. the sign bears conspicuous and substantial advertising
4 matter about the product or the brewer, beer
5 distributor, small brewer self-distributor or brewpub
6 self-distributor which is permanently inscribed or
7 securely affixed,
8 b. the retailer is not compensated, directly or
9 indirectly, such as through a sign company, for
10 displaying the signs, and
11 c. a permanent outdoor sign does not contain the
12 retailer's name.

13 G. It shall not be deemed an inducement or a discriminatory
14 action for a brewer, beer distributor, small brewer self-
15 distributor, brewpub self-distributor, or a wine and spirits
16 wholesaler to establish individualized servicing and delivery
17 schedules for its retailers based on each retailer's actual needs,
18 including, without limitation, on the basis of the retailer's sales
19 volume.

20 SECTION 5. AMENDATORY 37A O.S. 2021, Section 5-132, as
21 last amended by Section 3, Chapter 90, O.S.L. 2024 (37A O.S. Supp.
22 2025, Section 5-132), is amended to read as follows:

23 Section 5-132. A. Except as provided in subsection D of this
24 section, no alcoholic beverage shall be labeled, offered or

1 advertised for sale in this state unless in accordance with rules
2 promulgated pursuant to the provisions of Section 5-130 of this
3 title and unless the brand label shall have been registered with and
4 approved by the ABLE Commission and the appropriate fee paid as
5 provided for in this section.

6 B. An application for registration of a brand label shall be
7 filed by and fees paid by the manufacturer or brewer, winemaker,
8 distiller or nonresident seller of the brand. Licensees, other than
9 the foregoing applicants, shall not be required to verify
10 registration to the ABLE Commission and shall not be penalized for
11 any applicant's failure to register its brand label in accordance
12 with this section. Cordials and wines which differ only as to age
13 or vintage year, as defined by such rules, shall be considered the
14 same brand, and those that differ as to type or class may be
15 considered the same brand by the ABLE Commission where consistent
16 with the purposes of this section.

17 C. The application for registration of a brand label shall be
18 filed on a form prescribed by the ABLE Commission, and shall contain
19 such information as the ABLE Commission shall require. Such
20 application shall be accompanied by a certified check, bank
21 officers' check or draft or money order in the amount of the annual
22 registration fee, or the properly prorated portion thereof
23 prescribed by this section.

1 D. 1. The annual fee for registration of any brand label for
2 spirits shall be Three Hundred Seventy-five Dollars (\$375.00),
3 unless total amount of spirits made available for sale in a single
4 year does not exceed fifty-three (53) gallons, in which case the
5 annual fee for registration of any brand label shall be Seventy-five
6 Dollars (\$75.00). The annual fee for registration of any brand
7 label for beer shall be Two Hundred Dollars (\$200.00). The annual
8 fee for registration of any brand label for wine made in the United
9 States, or for registration of any category of imported wine as
10 defined by the Oklahoma Tax Commission, shall be Two Hundred Dollars
11 (\$200.00). Beer and spirits manufactured in this state shall be
12 exempt from brand label registration fees.

13 2. Each brand label registered and approved pursuant to this
14 section shall be valid for a term of up to one (1) year, expiring on
15 the June 30 next following registration, and may be renewed for
16 subsequent terms of one (1) year beginning on the July 1 following
17 the initial registration. Brand registration fees for labels
18 registered after July 1 may be prorated through the following June
19 30 on a quarterly basis. The brand registration fee shall not be
20 transferable, unless otherwise allowed by law. A nonresident seller
21 who registered brands prior to May 7, 2019, may transfer brand
22 registrations to the brewer or manufacturer that produces those
23 brands, provided the brewer or manufacturer has obtained a license,
24 at no expense to the nonresident seller, brewer or manufacturer.

1 E. If the ABLE Commission shall deny the application for
2 registration of a brand label, it shall return the registration fee
3 to the applicant, less twenty-five percent (25%) of such fee.

4 F. The ABLE Commission may at any time exempt any discontinued
5 brand from fee provisions of this section where a manufacturer,
6 brewer, beer distributor or wholesaler has an inventory of one
7 hundred cases or less of liquor or wine and five hundred cases or
8 less of beer, and certifies to the ABLE Commission in writing that
9 such brand is being discontinued.

10 G. No private labels or control labels shall be approved for
11 sale in this state, except for charity collaboration beer as
12 authorized in Section 2-102.1 of this title.

13 SECTION 6. This act shall become effective November 1, 2026.

14 COMMITTEE REPORT BY: COMMITTEE ON BUSINESS AND INSURANCE
15 February 12, 2026 - DO PASS AS AMENDED
16
17
18
19
20
21
22
23
24